

Smt. Sai Kiran Khanna v. State of U.P. And 4 Others

High Court of Judicature at Allahabad · Division Bench · 24 November 2017 · WRIT - C No. - 56014 of 2017 · **Writ disposed; EE to inspect and consider afresh if 160 kVA transformer removed.**

HEADNOTE

Writ disposed of with a direction to the Executive Engineer to inspect the site and, if the petitioner's 160 kVA transformer had been removed, to consider her case afresh in accordance with law. The claim under Clause 4.6(e) of the Electricity Supply Code, 2005 that the licensee must develop LT load up to 50 kW without supervision charges was not decided.

FACTUAL SUMMARY

Smt. Sai Kiran Khanna alleged that the Executive Engineer had ignored earlier High Court directions. She invoked Clause 4.6(e) of the Electricity Supply Code, 2005, under which low-tension load up to 50 kW is developed by the licensee without supervision charges. The licensee said she had agreed to bear the cost and had installed a 160 kVA transformer, and that her case would be considered afresh only if she installed a 100 kVA unit as per estimate 134/2016-17. Counsel stated the 160 kVA transformer had been, or would be, removed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6(e)

fresh consideration after removal of oversized transformer

HOLDING

On the parties' statements that the petitioner had removed or would remove a 160 kVA transformer, the Court disposed of the writ by directing the Executive Engineer to inspect the site and, if that transformer had already been removed, to consider the petitioner's case afresh in accordance with law. The Court did not decide the petitioner's claim under Clause 4.6(e) that LT load up to 50 kW must be developed by the licensee without supervision charges. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.6(E) REQUIRED THE LICENSEE TO DEVELOP LT LOAD UP TO 50 KW WITHOUT SUPERVISION CHARGES, AND WHETHER EARLIER WRIT DIRECTIONS HAD BEEN BREACHED

Asserted by the petitioner but not examined; disposal turned on site inspection and fresh consideration if the 160 kVA transformer was removed. ¶ 1